

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201600267	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 01/11/2016 8:17 PM, Tuesday, 01/12/2016 12:00 AM	Location of Incident: § 87(2)(b) and the 33rd Precinct stationhouse	18 Mo. SOL 7/11/2017	Precinct: 33
Date/Time CV Reported Wed, 01/13/2016 9:15 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/13/2016 9:15 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Clarke	2515	955824	033 PCT
2. POM Ryan Felter	01002	953851	033 PCT
3. POM Hotoniel Diaz	16543	957540	033 PCT
4. POM Anthony Lamberti	19295	943460	033 PCT
5. POM Jorge Grullon	31251	938622	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Edward Cheek	4369	922103	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Clarke	Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Steven Clarke used physical force against § 87(2)(b)	A . Exonerated
B . POM Ryan Felter	Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Ryan Felter used physical force against § 87(2)(b)	B . Exonerated
C . POM Anthony Lamberti	Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Anthony Lamberti used physical force against § 87(2)(b)	C . Unfounded
D . POM Hotoniel Diaz	Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Hotoniel Diaz used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Jorge Grullon	Abuse: On January 12, 2016, at the 33rd Precinct stationhouse, Police Officer Jorge Grullon refused to provide his name and shield number to § 87(2)(b)	E . Substantiated
F . POM Ryan Felter	Abuse: On January 12, 2016, at the 33rd Precinct stationhouse, Police Officer Ryan Felter refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated

Case Summary

This complaint was filed by § 87(2)(b) on January 13, 2016 with the CCRB via phone.

On January 11, 2016, at approximately 8:17 p.m., § 87(2)(b) was inside a NYCHA facility at § 87(2)(b) in Manhattan. On her way out of the building, § 87(2)(b) interacted with the following officers from the 33rd Precinct: PO Steven Clarke, PO Ryan Felter, PO Anthony Lamberti, PO Hotoniel Diaz, and PO Jorge Grullon. PO Clarke asked § 87(2)(b) where she was coming from. § 87(2)(b) initially refused to answer some of his questions. § 87(2)(b) eventually attempted to provide the information that was being requested but was then pushed by PO Clarke and PO Felter into a wall (**Allegation A, Allegation B**). PO Lamberti and PO Diaz allegedly started pulling § 87(2)(b)'s arms (**Allegation C, Allegation D**). PO Diaz allegedly hit § 87(2)(b) in the stomach with his elbow two or three times (**subsumed in Allegation D**). § 87(2)(b) was handcuffed. PO Felter allegedly twisted § 87(2)(b)'s wrists while he was bringing her to the police car to be transported to the 33rd Precinct stationhouse in Manhattan (**subsumed in Allegation B**).

On January 12, 2016, § 87(2)(b) returned to the stationhouse at approximately 7 p.m. after being released from Manhattan Central Booking. At the stationhouse, PO Grullon and PO Felter allegedly refused to provide their name and shield number to § 87(2)(b) (**Allegation E, Allegation F**).

There is no video that captured this incident. § 87(2)(b) was arrested for § 87(2)(b)

(Board Review 01). § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to the arrest of § 87(2)(b)
- The NYC Office of the Comptroller responded to a request on March 1, 2016 indicating that no Notice of Claim has been filed by § 87(2)(b) in regards to this incident (Board Review 02).

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (Board Review 04).
- PO Clarke has been a member of the service for two years and this is his first CCRB complaint (Board Review 05).
- PO Felter has been a member of the service for three years and this is his first CCRB complaint (Board Review 06).
- PO Diaz has been a member of the service for one year and this is his first CCRB complaint (Board Review 07).
- PO Lamberti has been a member of the service for nine years and has one prior substantiated force allegation. In CCRB base 200906829 the Board recommended

charges for PO Lamberti for punching a resisting subject in the mouth. The NYPD enforced instructions (Board Review 08).

- PO Grullon has been a member of the service for 10 years and has no substantiated allegations. PO Grullon has eight prior allegations involving four cases. § 87(2)(g)

Potential Issues

The CCRB identified § 87(2)(b) as the male who was arrested at the incident location with § 87(2)(b). A statement was not obtained from § 87(2)(b). A review of § 87(2)(b) arrest history, a White Pages search, and a Lexis search did not yield any working contact information for § 87(2)(b). Field work was conducted at the incident location to canvass for witnesses. The investigation was unable to identify any additional witnesses to this incident.

Findings and Recommendations

Allegation A – Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Steven Clarke used physical force against § 87(2)(b)

Allegation B – Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Ryan Felter used physical force against § 87(2)(b)

Allegation C – Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Anthony Lamberti used physical force against § 87(2)(b)

Allegation D – Force: On January 11, 2016, at § 87(2)(b) in Manhattan, Police Officer Hotoniel Diaz used physical force against § 87(2)(b)

§ 87(2)(b) testified that she left a friend's apartment on the § 87(2)(b) of § 87(2)(b) (Board Review 10). § 87(2)(b) saw officers dealing with one male and three other females on the first floor. § 87(2)(b) was approached by PO Clarke near the bottom of the staircase. § 87(2)(b) obtained the names and shield numbers of the officers involved in this incident by looking at their shield and name tags. PO Clarke asked § 87(2)(b) if she lived in the building. § 87(2)(b) told PO Clarke that she did not live in the building but that she had a friend who lived there. PO Clarke asked § 87(2)(b) which apartment she was coming from. § 87(2)(b) initially refused to answer until he told her why she was being questioned. PO Clarke eventually told § 87(2)(b) that she was being stopped for trespassing. PO Clarke asked § 87(2)(b) for her ID. § 87(2)(b) told PO Clarke that she did not have her ID but that she was willing to provide her information. § 87(2)(b) asked to step away from the other people who were stopped in the hallway so that they would not overhear her information. PO Clarke told § 87(2)(b) that this was ok. § 87(2)(b) walked toward the front of the hallway. PO Clarke and PO Felter pushed § 87(2)(b) into the wall. § 87(2)(b) did not fall down. PO Lamberti and PO Diaz started pulling on § 87(2)(b)'s arms. § 87(2)(b) was not doing anything with her body when the officers started touching her. § 87(2)(b) started yelling for people in the hallway to record what was happening. PO Diaz hit § 87(2)(b) in the stomach two or three times. PO Felter handcuffed § 87(2)(b) behind her back. PO Felter took § 87(2)(b) to his police car. On their way to the car, PO Felter was twisting § 87(2)(b)'s wrists upward. § 87(2)(b) asked PO Felter why he was doing this and he responded, "Your mouth." During her interview, § 87(2)(b) expressed that she was felt there was no reason for her to be arrested. § 87(2)(b) did not understand why she was placed under arrest and processed for this incident while another male who was also arrested at the location for having a large quantity of marijuana was released with a desk appearance ticket. § 87(2)(b) felt that PO Lamberti was the officer in charge during this incident.

§ 87(2)(b) sought medical treatment at § 87(2)(b) on § 87(2)(b)
§ 87(2)(a) PHL § 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

The event report associated with this incident indicates that a female called to report a group of nine mostly Hispanic males in the first floor stairwell of the building who were smoking and selling marijuana (Board Review 19). This witness could not be contacted because she chose to remain anonymous and provided no contact information when she made the complaint.

§ 87(2)(g)
§ 87(2)(b). The officers received a call regarding drug use and multiple subjects at the incident location. Upon arriving at the building, a group of teenagers was observed standing around on the first floor. One male from the group fled up the stairs. PO Grullon and PO Felter pursued the male up the stairs but he escaped. The other officers dealt with the remainder of the group in the hallway on the first floor. § 87(2)(b) was placed under arrest for possession of marijuana. There were multiple female civilians who stated that they did not live in the building and were not visiting anyone. § 87(2)(b) refused to answer the officers' questions in regards to her business in the building. § 87(2)(b) was argumentative and yelling at the officers. Sgt. Cheek determined that § 87(2)(b) was going to be placed under arrest for criminal trespass. § 87(2)(b) resisted being handcuffed by pulling her arms in front of her. The officers involved in handcuffing her overcame her resistance by pulling her arms behind her back. All the officers denied seeing PO Diaz strike § 87(2)(b) in the stomach with his elbow. PO Lamberti was not involved in getting § 87(2)(b) handcuffed because he was dealing with § 87(2)(b)

PO Clarke testified that § 87(2)(b) kept saying, "I know my rights. I don't have to tell you anything" in response to his questions about what she was doing in the building (Board Review 11). § 87(2)(b) was deemed to be under arrest and was handcuffed. § 87(2)(b)'s resistance to being handcuffed was overcome with the assistance of PO Felter who held § 87(2)(b)'s arms in place. PO Clarke and PO Felter walked § 87(2)(b) out of the building. § 87(2)(b) was wriggling her body which made him think she was trying to get away. PO Clarke and PO Felter pushed § 87(2)(b) against the wall to get her to stay still and relax. PO Felter did not twist § 87(2)(b)'s wrists on their way to the car.

PO Lamberti testified that he was primarily dealing with § 87(2)(b) during this incident because he was placing him under arrest (Board Review 12). PO Lamberti did not remember who was dealing with § 87(2)(b). § 87(2)(b) resisted being handcuffed. PO Diaz was involved in getting § 87(2)(b) handcuffed. PO Lamberti could not see how § 87(2)(b)'s resistance was overcome because his view was obstructed by the officers' bodies. PO Lamberti did not recall § 87(2)(b) being pushed against the wall. PO Diaz did not hit § 87(2)(b) in the stomach.

PO Felter testified that he assisted PO Grullon in pursuing a male who had fled up the stairs (Board Review 13). Upon returning to the first floor, § 87(2)(b) and § 87(2)(b) were already handcuffed. PO Felter did not witness either of the civilians being handcuffed and was not involved handcuffing either subject. PO Felter took § 87(2)(b) to his vehicle for transport to the stationhouse. PO Felter was holding § 87(2)(b) by her tricep on the way outside. § 87(2)(b) pulled away from PO Felter and said, "Get the fuck off of me. You have no right to arrest me." PO Felter readjusted his hold on § 87(2)(b) to keep her from escaping. PO Felter held onto § 87(2)(b)

§ 87(2)(b) by the chain of the handcuffs. This motion naturally applies pressure to the wrists. PO Felter did not twist § 87(2)(b)'s wrists. § 87(2)(b) did not complain of any pain.

PO Diaz testified that § 87(2)(b) pushed PO Clarke while trying to leave the building (Board Review 14). PO Clarke stepped in front of § 87(2)(b). § 87(2)(b) was placed under arrest. PO Diaz did not have any physical contact with § 87(2)(b). PO Diaz did not hit § 87(2)(b) in the stomach with his elbow. § 87(2)(b) was not compliant when she was being taken out of the building to be transported. § 87(2)(b) pushed her body back against the officers and refused to walk forward. PO Diaz did not remember § 87(2)(b) being pushed against the wall.

PO Grullon pursued a male who fled up the stairs (Board Review 15). When PO Grullon got back downstairs, officers were speaking with people from the group. PO Grullon spoke with two females and issued them summonses after determining they were trespassing. § 87(2)(b) provided some resistance to being handcuffed which was overcome by PO Clarke pulling her arms behind her back. PO Grullon did not see PO Diaz hit § 87(2)(b) in the stomach with his elbow. PO Grullon did not recall § 87(2)(b) being pushed against the wall by any officer.

Sgt. Cheek testified that he determined that § 87(2)(b) was going to be placed under arrest (Board Review 16). Sgt. Cheek turned to inform PO Lamberti of this. Sgt. Cheek heard § 87(2)(b) say, "Get off me." Sgt. Cheek turned around and saw that § 87(2)(b) was handcuffed. Sgt. Cheek did not remember who was involved in getting § 87(2)(b) handcuffed. Sgt. Cheek did not see PO Diaz hit § 87(2)(b) in the stomach with his elbow. Sgt. Cheek did not see any officer push § 87(2)(b) against the wall. § 87(2)(b) was compliant while she was being taken out of the building. Sgt. Cheek did not see PO Felter twisting § 87(2)(b)'s wrists.

Patrol Guide 203-11 states that officers must "use minimum necessary force." PG 203-11 goes on to say that "whenever it becomes necessary to take a violent or resisting subject into custody, responding officers should utilize appropriate tactics in a coordinated effort to overcome resistance" (Board Review 17).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Exonerated**.

The officers interviewed all provided consistent testimony that PO Lamberti was dealing with the male that he had placed under arrest while § 87(2)(b) was being handcuffed. PO Lamberti denied that he had any physical contact with § 87(2)(b) at the building. § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation C** be closed as **Unfounded**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: On January 12, 2016, at the 33rd Precinct stationhouse, Police Officer Jorge Grullon refused to provide his name and shield number to § 87(2)(b)

Allegation F – Abuse of Authority: On January 12, 2016, at the 33rd Precinct stationhouse, Police Officer Ryan Felter refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) testified that she returned to the stationhouse on January 12, 2016 to retrieve property (Board Review 10). § 87(2)(b) saw PO Grullon and recognized him from the day before. § 87(2)(b) had not obtained his credentials so she asked him for his name and shield number. PO Grullon looked at § 87(2)(b) rolled his eyes and walked away. § 87(2)(b) saw PO Felter at the desk. § 87(2)(b) asked PO Felter for his name and shield number. PO Felter was holding his walkie talkie and said, “I have to go.” PO Felter walked away.

PO Felter testified that on January 12, 2016, he was at the stationhouse completing paperwork near the desk (Board Review 13). PO Felter received a job and left the stationhouse. On his way outside, § 87(2)(b) said, “You, I need your shield number.” PO Felter verbally stated his shield number. § 87(2)(b) said, “I got it.” § 87(2)(b) appeared to be writing this down on a piece of paper. Later, PO Clarke told PO Felter that § 87(2)(b) had been asking everyone for their name and shield numbers at the stationhouse.

PO Grullon testified that he entered the stationhouse on January 12, 2016 (Board Review 15). PO Grullon saw § 87(2)(b) speaking calmly with officers near the front door. § 87(2)(b) did not say anything to PO Grullon. § 87(2)(b) did not react to PO Grullon walking by. PO Grullon did not refuse to provide his name and shield number to § 87(2)(b).

PO Diaz testified that he saw § 87(2)(b) enter the stationhouse on January 12, 2016 (Board Review 14). § 87(2)(b) said, “I’m going to make a report on you.” § 87(2)(b) looked at PO Diaz’ badge and wrote down his information. § 87(2)(b) went inside the stationhouse and exited a couple minutes later. PO Diaz did not go inside with § 87(2)(b). § 87(2)(b) said, “Good night, asshole” to PO Diaz as she left the stationhouse.

Sgt. Cheek saw § 87(2)(b) standing near the desk at the stationhouse (Board Review 16). § 87(2)(b) appeared to be retrieving property. § 87(2)(b) was yelling and cursing. § 87(2)(b) was saying, “I’m suing you” aloud. § 87(2)(b) did not appear to be talking to anyone in particular.

Sgt. Cheek heard § 87(2)(b) asking people for their name and shield numbers. Sgt. Cheek did not know if the female was saying this to anyone specific or if she was saying it out aloud to everybody. Sgt. Cheek did not hear anybody responding to § 87(2)(b)

PO Clarke did not witness the incident on January 12, 2016. However, PO Clarke testified that when § 87(2)(b) was arrested she asked him and PO Felter for their name and shield numbers (Board Review 11). PO Clarke and PO Felter both provided this information verbally to § 87(2)(b) § 87(2)(b) appeared to have received this information because she repeated it aloud.

Patrol Guide 203-09 states that officers must “courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow ample time to note this information” (Board Review 18).

§ 87(2)(b) obtained the name and shield number for PO Clarke, PO Diaz, PO Felter, and PO Lamberti and provided them when she made this complaint. PO Grullon was the only officer § 87(2)(b) was unable to identify. § 87(2)(b) made the refusal allegation against PO Grullon when she initially filed this complaint and during her interview and she made no additional allegations against him. § 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

PO Felter testified that he provided his shield number when it was requested § 87(2)(b)

it is recommended that **Allegation F** be closed as **unsubstantiated**.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date